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Case Number: 24TRCV03220 Hearing Date: August 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JULIE KESSLER

,

Plaintiff,

vs.

THE VONS COMPANIES, INC.

;

Defendant.

Case

No.:

24TRCV03220

Hearing

Date:

August

7, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

JULIE KESSER'S MOTION FOR ISSUE SANCTIONS, EVIDENTIARY SANCTIONS, AND ADVERSE JURY INSTRUCTION AGAINST DEFENDANT THE VONS COMPANIES, INC. FOR THE NEGLIGENT DESTRUCTION OF VIDEO SURVEILLANCE EVIDENCE

MOVING PARTY: Plaintiff, Julie Kessler

RESPONDING

PARTY: Defendant, the Vons

Companies, Inc.

(1)

Plaintiff

Julie Kessler's Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction Against Defendant the Vons Companies, Inc. for the Destruction of Video Surveillance Evidence is GRANTED IN PART pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 and Evidence Code section 413.

The Court considers the moving papers filed on March 12, 2026, the opposition brief filed on July 27, 2026, and the reply brief filed on July 31, 2026.

BACKGROUND

Factual Background

On September 25, 2024, plaintiff Julie Kessler ("Plaintiff") filed the Complaint against defendants the Vons

Companies, Inc. ("Defendant") and DOES 1 through 50. The Complaint includes the following causes of action: (1) General Negligence and (2) Premises Liability.

On September 5, 2024,

Plaintiff served a Notice of Claim and Preservation of Evidence on an employee of Defendant. (Declaration of Eddie B.

Dennis ("Dennis Decl."), ¶ 3, Exh. 1.) This

notice requested that Defendant "take all necessary steps to preserve any and all evidence, including but not limited to, all closed-circuit television

footage, surveillance tapes, and/or video footage from VONS located at 410

Manhattan Beach Blvd, Manhattan Beach, CA 90266 has for one (1) day prior and

one (1) day after, including the above referenced 'Date of Incident.' " (Dennis Decl., ¶ 3, Exh. 1.) Plaintiff attaches a receipt, signed by "T.

Campbell," which shows that the notice was served and received. (Dennis Decl., ¶ 4, Exh. 2.)

On November 15, 2024,

Plaintiff propounded Request for Production of Documents, Set One, on

Defendant, seeking all video surveillance related to the incident. (Dennis Decl., ¶ 10.)

On January 3, 2025, Defendant provided

verified responses identifying the video surveillance and included a copy of the video. (Dennis Decl., ¶ 11, Exh. 8.)

On March 31, 2025, Plaintiff propounded

Request for Production of Documents, Set One, on Defendant, requesting at least two hours of video surveillance. (Dennis

Decl., ¶ 12.)

On May 1, 2025, Defendant responded

with verified statements indicating, "[Defendant] is unable to comply because the particular item or category is no longer, in the possession, custody, or control of [Defendant]." (Dennis Decl.,

¶ 13, Exh. 9.)

On October 24, 2025, Plaintiff

sent Defendant a meet-and-confer letter regarding the destruction or spoliation of evidence. (Dennis Decl., ¶ 8, Exh.

6.) In this correspondence, Plaintiff

requested a conference to resolve the matter informally and avoid court

intervention. (Dennis Decl., ¶ 8, Exh. 6.) Additionally, Plaintiff notified Defendant

that should an informal resolution prove unattainable, it will proceed to file a motion seeking sanctions and adverse jury instructions. (Dennis Decl., ¶ 8, Exh. 6.)

On October 31, 2025, Defendant responded to the meet-and-confer letter, asserting its disagreement with Plaintiff's arguments and stating that it "remains open to further dialogue regarding reasonable, proportional discovery measures to avoid unnecessary motion practice." (Dennis Decl., ¶ 9, Exh. 7.)

Procedural Background

On March 12, 2026, Plaintiff filed this motion.

On May 18, 2026, the Court granted this motion, leading to the imposition of both evidentiary sanctions and adverse jury instructions. (May 18, 2026 Minute Order, p. 7.) However, on July 13, 2026, the Court vacated and set aside its May 18, 2026, Order; this decision was made in response to Defendant's assertion that it had not received proper notice of the motion. (July 13, 2026 Minute Order, pp. 4-8.) Consequently, the motion was rescheduled for August 7, 2026, at 8:30 a.m., with Defendant's opposition brief due on or before July 27, 2026, and Plaintiff's reply brief due on or before August 3, 2026. (July 13, 2026 Minute Order, pp. 7-8.)

On July 27, 2026, Defendant filed an opposition brief. On July 31, 2026, Plaintiff filed a reply brief.

LEGAL STANDARDS

The "court, after notice to any affected party, person, or attorney, and after an opportunity for hearing, may impose" monetary, issue, evidence, or terminating sanctions "against anyone engaging in conduct that is a misuse of the discovery process[.]" (Code Civ. Proc., § 2023.030, subds. (a)-(d).) Issue sanctions may designate facts that shall be taken as established in the action in accordance with the claim of the party adversely affected by a misuse of the

discovery process. (Code Civ. Proc., § 2023.030, subd. (b).) Evidentiary sanctions may prohibit any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (Code Civ. Proc., § 2023.030, subd. (c).)

Failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d), (g).) Though not expressly prohibited by the Discovery Act, courts have found destruction of evidence in response to, or in anticipation of, a discovery request to be a misuse of the discovery process. (See *Dodge, Warren & Peters Ins. Services, Inc. v. Riley*, (2003) 105 Cal.App.4th 1414, 1419; see *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, 11.)

“Spoliation of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another’s use in pending or future litigation. Such conduct is condemned because it ‘can destroy fairness and justice, for it increases the risk of an erroneous decision on the merits of the underlying cause of action. Destroying evidence can also increase the costs of litigation as parties attempt to reconstruct the destroyed evidence or to develop other evidence, which may be less accessible, less persuasive, or both.’ While there is no tort cause of action for the intentional destruction of evidence after litigation has commenced, it is a misuse of the discovery process that is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions.” (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223, citations omitted (Williams).)

A party asserting spoliation of evidence does not need to prove that the nonmoving party willfully destroyed evidence; rather, the intent element of intentional spoliation is satisfied when there is knowledge of “an existing or potential action for damages; and [] the destroyed or altered object might constitute evidence in that action.” (Gomez v. Acquistapace (1996) 50 Cal.App.4th 740, 747 [discussion still applicable even though intentional tort for spoliation is no longer valid under California law].) Willfulness is not required; rather, intentional spoliation occurs where a party “destroys an object which

might constitute evidence in a lawsuit: (1) with the purpose of harming the lawsuit, or (2) when harm to the lawsuit is substantially certain to follow.” (Ibid.) A party moving for discovery sanctions based on spoliation of evidence must make an initial prima facie showing that the responding party had destroyed evidence that had a “substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (Williams, supra, 167 Cal.App.4th at p. 1227.) Once the moving party meets that burden, the burden shifts to the responding party to prove the moving party did not suffer prejudice from the loss of the documents. (Id. at pp. 1226-1227.)

“Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are not designed to punish, ‘ “sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party’s misconduct.” ’ [Citation.]” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 74 (Kwan).) Discovery sanctions are matters squarely within the trial court’s discretion and will not be returned except in instances of extreme abuse. (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102.)

In addition to the imposition of sanctions, the Court may issue adverse jury instructions. “In determining what inferences to draw from the evidence or facts in the case against a party, the trier of fact may consider, among other things, the party’s failure to explain or to deny by his testimony such evidence or facts in the case against him, or his willful suppression of evidence relating thereto, if such be the case.” (Evid. Code, § 413.)

DISCUSSION

Plaintiff contends that the Court should impose issue sanctions, evidentiary sanctions, and/or provide an adverse jury instruction against Defendant, asserting that Defendant negligently destroyed video surveillance footage of Plaintiff’s incident after receiving

Plaintiff's Notice of Claim and Request to Preserve Video Surveillance
Evidence. (Motion, pp. 2:14-3:3.)

Intentionally Permitting the Destruction
of Evidence

On September 5, 2024,
Plaintiff served a Notice of Claim and Preservation of Evidence on Tawnya
Campbell, an employee of Defendant. (Dennis
Decl., ¶ 3, Exh. 1.) This notice was served
in relation to Plaintiff's alleged slip and fall incident involving an
unidentified liquid substance near the self-checkout area on August 14, 2024,
at Vons, located at 410 Manhattan Beach Blvd., Manhattan Beach, CA 90266. (Dennis Decl., ¶ 2.) The notice requested that
Defendant "take all
necessary steps to preserve any and all evidence, including but not limited to,
all closed-circuit television footage, surveillance tapes, and/or video footage
from VONS located at 410 Manhattan Beach Blvd, Manhattan Beach, CA 90266 has
for one (1) day prior and one (1) day after, including the above referenced 'Date
of Incident.' " (Dennis Decl., ¶ 3, Exh.
1.)

Plaintiff attaches a certified
mail receipt, signed by "T. Campbell," which indicates that the notice was
served and received. (Dennis Decl., ¶ 4,
Exh. 2.) On January 7, 2026, Plaintiff
deposed Tawnya Campbell, the individual who signed the receipt. (Dennis Decl., Exh. 5; Declaration of Kori N.
Macksoud ("Macksoud Decl."), ¶ 7, Exh. D.)
During the deposition, Campbell affirmed that she had accepted the
receipt, that she possessed the necessary authorization to do so, and that she likely
placed the receipt on a manager's desk in accordance with her job
responsibilities. (Motion, pp.
9:22-10:2; Dennis Decl., Exh. 5, pp. 17:2-12, 18:5-16, 19:4-11, 21:8-18,
22:18-23:22, 25:8-27:11, 28:2-32:16.) However,
Campbell does not recall placing the letter on the desks of Store Director
Sinead Mulvey or Assistant Manager Christina Davis. (Dennis Decl., Exh. 5, p. 32:3-6.)

Mulvey stated that she neither
received nor was aware of the preservation letter until after the overwrite
occurred. (Macksoud Decl., ¶¶ 4, 6, Exh.
C, pp. 44:9-45:11.) Furthermore, Defendant's

counsel claims that Davis was also unaware of the preservation letter until after the overwrite; however, the provided deposition transcript does not elaborate on whether Davis had prior knowledge of or received the preservation letter before the overwrite occurred. (Macksoud Decl., ¶¶ 5-6, Exh. B.)

Defendant argues that “[t]he certified mail receipt here shows only that the letter reached the store’s front counter and was signed by an hourly employee; it does not establish that the notice reached, or was even routed to, an individual with authority to place a litigation hold on the surveillance system. A corporation is charged with the knowledge of its agents only as to matters within the scope of the authority delegated to them, not with the knowledge of every employee who happens to accept certified mail. (Trane Co. v. Gilbert (1968) 267 Cal.App.2d 720, 727.)” (Opp., p. 9:5-11.)

The Court notes that the case of Trane Co. v. Gilbert (Trane) does not substantiate the proposed rule. The Court of Appeal articulated that “it is a well established rule in California that the principal is chargeable with, and is bound by the knowledge of, or notice to, his agent, received while the agent is acting within the scope of his authority, and which is in reference to a matter over which his authority extends.” (Trane, *supra*, 267 Cal.App.2d at p. 727.) Nevertheless, even if Defendant were to present legal precedents indicating that a corporation is not held liable for the knowledge possessed by every employee who merely receives certified mail, the evidence still indicates that Defendant deliberately failed to preserve evidence in breach of both its duty to preserve evidence and its established procedures.

“Spoliation of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another’s use in pending or future litigation.” (Williams, *supra*, 167 Cal.App.4th at p. 1223; see also Reeves v. MV Transportation, Inc. (2010) 186 Cal.App.4th 666, 681.) Parties have a duty to preserve such evidence despite no court order being issued ordering the defendant to preserve evidence. (See Williams, *supra*, 167 Cal.App.4th at p. 1223; Victor Valley Union High School Dist. v. Superior Court (2023) 91 Cal.App.5th 1121, 1143-1149, 1152 [school had a

duty to preserve evidence because litigation was reasonably foreseeable at the time the video was erased despite no lawsuit having yet been filed.].)

Here, the alleged incident occurred on August 14, 2024. (Dennis Decl., ¶ 2.) Plaintiff filed the Complaint on September 25, 2024, and Defendant was personally served on October 3, 2024. (PoS, ¶ 5a.) Consequently, regardless of whether Defendant received the preservation letter, Defendant was on notice to preserve all relevant evidence beginning on October 3, 2024, at the latest.

On November 15, 2024, Plaintiff propounded Request for Production of Documents, Set One, on Defendant, seeking all video surveillance related to the incident. (Dennis Decl., ¶ 10.) On January 3, 2025, Defendant provided verified responses identifying the video surveillance and included a copy of the video. (Dennis Decl., ¶ 11, Exh. 8.) However, Plaintiff asserts that this video contained only approximately thirty minutes “of footage from the relevant interior cameras angles and ... the remainder of the video that spanned hours before and after the incident [were] overwritten and lost forever.” (Dennis Decl., Exh. 4, pp. 31:7-12, 51:1-4, 59:11-13.) Defendant itself confirmed that the additional video had been overwritten.

On March 31, 2025, Plaintiff propounded Request for Production of Documents, Set One, on Defendant, requesting at least two hours of video surveillance. (Dennis Decl., ¶ 12.) On May 1, 2025, Defendant responded with verified statements indicating, “[Defendant] is unable to comply because the particular item or category is no longer, in the possession, custody, or control of [Defendant].” (Dennis Decl., ¶ 13, Exh. 9.) Ergo, the only reasonable inference from this communication is that the remaining video footage has been overwritten, as the surveillance system at the store location automatically deletes unsaved video footage after a retention period of 90 days. (Dennis Decl., Exh. 4, pp. 30:24-32:1.)

Moreover, the Court notes that Defendant’s provision of approximately 30 minutes of footage is inconsistent with its standard practice, which typically involves the preservation of footage for a minimum of one hour prior to the incident and one hour after the incident. (Dennis Decl., Exh. 4, pp.

28:11-22, 28:24-30:15, 32:5-33:4, Exh. 5, pp. 33:15-34:1, 38:5-12, 39:3-20.)

Based on this evidence, the Court finds that Defendant intentionally permitted the destruction of evidence requested by Plaintiff, in violation of standard procedures. The incident is alleged to have occurred on August 14, 2024. (Compl., p. 4.) Notably, given the 90-day evidence retention period, Plaintiff had until November 12, 2024 to notify Defendant of their lawsuit, so that Defendant would be aware of its obligation to preserve relevant evidence, including video footage for at least one hour before and one hour after the incident, as per its standard practices.

Plaintiff personally served Defendant on October 3, 2024, effectively putting it on notice to preserve all relevant evidence. Notwithstanding this notice, Defendant intentionally chose not to preserve the video surveillance for the required duration before and after the incident, in line with its standard procedures.

Furthermore, the Court concurs with Plaintiff's observation that "[t]he dates of the downloads make [Defendant's] conduct even more troubling. At least one clip was downloaded on September 19, 2024 ... and additional clips were downloaded on October 17, 2024. [] Mulvey admitted that the complete footage still existed on both dates. On September 19, [Defendant] had the ability to preserve as much footage as it wanted" but chose not to do so. (Reply, p. 6:5-9.)

Therefore, the Court finds that the Defendant intentionally permitted the destruction of evidence despite their knowledge of impending litigation. This constitutes a breach of its duty to preserve such materials.

Prejudice

Moreover, the Court finds that Plaintiff has made a sufficient showing that Defendant destroyed evidence with a "substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (Williams, supra, 167 Cal.App.4th at p. 1227.)

Plaintiff asserts that "Defendant denies all liability, contending that it lacked notice of any hazardous

condition and that Plaintiff herself may have caused the spill[.]” as Defendant allegedly conducted cleaning and inspections in the area prior to the incident. (Motion, pp. 7:8-9, 8:15.) Conversely, Plaintiff argues that “she slipped on a clear foreign substance that existed for a sufficient amount of time for Defendant to have discovered it and cleaned it before her fall.” (Motion, p. 8:16-18.)

Plaintiff further contends that Defendant’s video surveillance could offer crucial evidence regarding several key questions. These include: “whether a spill existed before Plaintiff arrived, who caused the spill, how long it was present, whether employees conducted requisite inspections, whether Defendant had actual or constructive notice, and whether Defendant had an opportunity to prevent the fall.” (Motion, pp. 7:27-8:2.) The issue of constructive notice is pivotal in this premises liability case. (Reply, p. 7:19.) Defendant’s Person Most Knowledgeable also (“PMK”) confirmed that this video surveillance is a valuable tool for understanding the circumstances surrounding the incident, including the cause of the fall and if either party could have taken preventive action. (Motion, pp. 8:26-9:6; Dennis Decl., Exh. 4, pp. 41:22-42:25.) The PMK also acknowledged that failing to preserve this video evidence hampers both parties’ understanding of what actually occurred. (Motion, p. 9:8-10; Dennis Decl., Exh. 4, p. 43:6-10.) Thus, it is not speculative to assert that the unpreserved footage would have helped clarify the issues of constructive notice.

The Court finds that the destroyed video evidence would provide an impartial and objective depiction of the incident and its related circumstances. However, due to Defendant’s intentional failure to preserve evidence that could be instrumental in resolving the case, Plaintiff lacks access to the comprehensive video evidence that might otherwise bolster their claims or counter Defendant’s defenses. As Plaintiff asserts, “[t]he destroyed video would have eliminated speculation and its loss ensures that speculation now fills the void.” (Motion, p. 14:13-14.) The absence of the full video “creates a distorted and misleading evidentiary record[.]” as the thirty-minute video “deprive[s] the factfinder of the ability to understand what occurred before and after the incident.” (Motion, p. 14:16-18.)

Defendant asserts that Plaintiff cannot demonstrate prejudice, because “[t]he preserved footage shows no visible hazard on the floor; Plaintiff herself testified she did not observe any

substance before her fall; an employee crossed the identical area less than a minute before the incident and observed nothing; and Assistant Manager Davis confirmed the area is fully visible to staff, such that a hazard present for more than a few minutes would ordinarily have been seen and addressed." (Opp., pp. 9:26-10:3.)

However, Defendant's reasoning

is inconsistent with its own theory of liability. (Reply, p. 6:24.) Defendant "does not genuinely dispute that Plaintiff slipped on a substance. Its

own witness testified that employees reported oil on the floor, that Plaintiff

reported slipping on oil, and that the oil had already been cleaned by the time management arrived. [Defendant's] affirmative theory is that the

oil came from a chicken

container Plaintiff was carrying."

(Reply, pp. 6:24-7:2; Dennis Decl., Exh. 3, pp. 68:9-70:20.) Consequently, "the fact that a clear liquid

or oil is not apparent in an overhead surveillance image does not resolve when

it appeared, who created it, or whether [Defendant] should have discovered it." (Reply, p. 7:5-6.) The Court concurs that the evidence could have

"shown a customer dropping or leaking a substance, employees traversing the

location, or an employee performing (or failing to perform) the required 'sweep

inspections.' " (Reply, p. 7:8-9.)

Sanctions

Plaintiff requests that the

Court impose issue sanctions to establish two key points: "(1) the hazardous

condition existed for a sufficient period of time prior to Plaintiff's fall

such that Defendant had constructive notice; and (2) the hazardous condition

was not caused by Plaintiff." (Motion,

p. 15:22-24.) Alternatively, Plaintiff

seeks "evidentiary sanctions precluding Defendant from offering evidence or

argument that it lacked notice of the hazardous condition or that Plaintiff

created the condition." (Motion, pp.

15:25-16:1.) Furthermore, Plaintiff requests

that the Court instruct the jury that they "may infer that the destroyed

surveillance footage would have been unfavorable to Defendant." (Motion, p. 16:4-5.)

Here, the imposition of

evidentiary sanctions and an adverse jury instruction is warranted. The

requested issue sanctions are unwarranted. The Court finds that the requested

evidentiary sanctions and the adverse jury instruction are more appropriate. Said sanctions serve to restore balance

concerning the destroyed evidence and position Plaintiff similarly to where

they would have been had the requested discovery been preserved and obtained. The imposition of issue sanctions would effectively adjudicate the merits of the case.

Defendant initially argues

that Plaintiff's failure to move to compel further responses or compliance with an inspection demand "forecloses the issue and evidentiary sanctions Plaintiff seeks as a matter of law, regardless of how the willfulness and prejudice questions addressed below are resolved" under *New Albertsons, Inc. v.*

Superior Court (2008) 168 Cal.App.4th 1403, 1422–1423 (*New Albertsons*). (Opp., p. 8:7-9.) The Court disagrees.

In *New Albertsons*, the

Court of Appeal stated that, "The general rule that we glean from these opinions is that if it is sufficiently egregious, misconduct committed in connection with the failure to produce evidence in discovery may justify the imposition of nonmonetary sanctions even absent a prior order compelling discovery, or its equivalent. Furthermore, a prior order may not be necessary where it is reasonably clear that obtaining such an order would be futile." (*New Albertsons*, *supra*, 168 Cal.App.4th at p. 1426.)

Here, the Court finds that a

court order would have been futile. Defendant

admits that the relevant surveillance footage was destroyed a significant time ago. A motion to compel would not have advanced the resolution of this case.

Defendant also contends that "New

Albertsons further instructs that, absent a violated discovery order, 'the

facts should be decided and any appropriate inference should be made by the trier of fact after a full

hearing at trial,' rather than through a nonmonetary sanction imposed on a pretrial motion." (Opp., pp. 8:27-9:2.) Defendant interpretation of this statement is

misplaced.

The Court of Appeal stated the

following: "[W]e believe that the concern expressed in *Cedars–Sinai*, *supra*,

18 Cal.4th at pages 15–16, 74 Cal.Rptr.2d 248, 954 P.2d 511, about meritless

spoliation claims where the evidence was destroyed innocently in the

ordinary course of business is an appropriate concern in this context as well. A party moving for discovery sanctions based on the intentional destruction of evidence could argue that the mere

fact that the evidence no longer exists supports an inference of intentional

spoliation. Rather than decide the facts with respect to the intentional destruction of evidence and impose a nonmonetary sanction on a pretrial motion in circumstances not contemplated by the discovery statutes, we believe that in most cases of purported spoliation the facts should be decided and any appropriate inference should be made by the trier of fact after a full hearing at trial.”
(New Albertsons, supra, 168 Cal.App.4th at p. 1428.)

Here, this issue is correctly before the Court within the meaning of New Albertsons, supra. As discussed above, the Court finds that Defendant intentionally destroyed the surveillance footage. As such, Plaintiff’s motion is GRANTED IN PART.

ORDERS

1) Plaintiff

Julie Kessler’s Motion for Issue Sanctions, Evidentiary Sanctions, and Adverse Jury Instruction Against Defendant the Vons Companies, Inc. for the Destruction of Video Surveillance Evidence is GRANTED IN PART.

2) The

Court imposes the following evidentiary sanctions:

a.

Defendant is prohibited from presenting

i.

any evidence or

ii.

making arguments asserting that

iii.

it lacked notice of the hazardous condition,

iv.

or that Plaintiff was responsible for creating said condition.

3) The

Request for an Adverse Jury Instruction is GRANTED.

a.

The jury is permitted to infer that the
destroyed surveillance footage would have been unfavorable to Defendant.

4) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Tamara
Hall

Judge
of the Superior Court